

IN THE UNITED STATES DISTRICT COURT  
NORTHERN DISTRICT OF FLORIDA  
PENSACOLA DIVISION

|                                    |   |                                        |
|------------------------------------|---|----------------------------------------|
| DEBRA NELSON                       | ) |                                        |
|                                    | ) | C.A. No.: <u>3:25-cv-01447-MCR-ZCB</u> |
| Plaintiff,                         | ) |                                        |
|                                    | ) |                                        |
| v.                                 | ) |                                        |
|                                    | ) |                                        |
| Amentum Government Services Parent | ) |                                        |
| Holdings LLC,                      | ) |                                        |
| CLARENCE XANDER, JANICE HUGHES,    | ) |                                        |
| HEATHER GUNN, DAKOTA THOMAS,       | ) |                                        |
| ELIAS VELASQUEZ, and               | ) |                                        |
| YUSEF ABDUL-JAMI,                  | ) |                                        |
|                                    | ) |                                        |
| Defendants.                        | ) |                                        |

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**FOURTH AMENDED COMPLAINT**

Plaintiff, **Debra Nelson**, files this Fourth Amended Complaint and alleges as follows:

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**I. INTRODUCTION**

This action arises from gender discrimination, retaliation, hostile work environment, wrongful termination, defamation, intentional infliction of emotional distress, negligent supervision, civil conspiracy, breach of contract, and whistleblower retaliation committed by Defendants during Plaintiff's employment with Amentum.

On October 28, 2025, Plaintiff engaged in protected activity by providing sworn deposition testimony in related federal litigation. Less than twenty-four hours later, on October 29, 2025, Amentum terminated Plaintiff. Defense counsel in the separate case referenced the termination in a subpoena issued on October 31, 2025, demonstrating retaliatory coordination across two cases.

Reinstatement is impossible due to the severity of the retaliation and coordinated conduct. Plaintiff seeks **front pay** for at least ten years.

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## **II. JURISDICTION AND VENUE**

Jurisdiction arises under Title VII, 42 U.S.C. § 2000e et seq., and 28 U.S.C. § 1331. Supplemental jurisdiction exists under 28 U.S.C. § 1367. Venue is proper because all events occurred in this District.

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## **III. PARTIES**

1. Plaintiff Debra Nelson is a resident of North Charleston, South Carolina.
  2. Defendant Amentum Government Services Parent Holdings LLC is a federal defense contractor and an employer within the meaning of Title VII.
  3. Defendants Clarence Xander, Ja'nice Hughes, Heather Gunn, Dakota Thomas, Elias Velasquez, and Yusef Abdul-Jami are named solely in connection with Plaintiff's state law causes of action (Counts IV–VIII). Plaintiff's Title VII claims (Counts I–III) are asserted only against Defendant Amentum.
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## **IV. FACTUAL BACKGROUND**

Plaintiff was employed by Amentum as a Non-Destructive Inspection (NDI) Technician in Milton, Florida. Plaintiff performed her duties with competence and dedication.

Plaintiff was subjected to gender-based discrimination, harassment, and retaliation after reporting safety, quality, and compliance violations to management.

Plaintiff's protected activity included complaints to supervision and management about noncompliance in turnover logs, locker inspections, and process control documentation.

Plaintiff reported that coworkers, including Yusef Abdul-Jami, failed to perform required tasks and falsified information in turnover logs. Management failed to act on these reports and instead retaliated against Plaintiff.

On May 29, 2025, Site Manager Clarence Xander instructed Plaintiff not to communicate with Abdul-Jami, despite the fact that the communication concerned legitimate work responsibilities.

Following this directive, Plaintiff experienced escalating retaliation and a hostile work environment, including attempts to discredit her professionally and interference with her job performance.

Plaintiff was forced to take medical leave beginning May 30, 2025, due to the stress and retaliatory conditions. She returned to work on July 2, 2025.

Upon her return, the retaliation continued, including being excluded from meetings, denied equal treatment, and falsely accused of misconduct.

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On August 6, 2025, Plaintiff commenced a second medical leave due to continued retaliation and remains on leave as of October 24, 2025.

Defendants' actions have caused Plaintiff severe emotional distress, reputational harm, and economic losses.

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## **ADDITIONAL FACTS**

### **A. Protected Activity – October 28, 2025 Deposition**

Plaintiff testified under oath in a related federal discrimination lawsuit on October 28, 2025. During the deposition, Plaintiff discussed discrimination, retaliation, and workplace misconduct by Amentum.

### **B. Retaliatory Termination – October 29, 2025**

Less than twenty-four hours later, Amentum terminated Plaintiff. The termination letter was issued at approximately 3:06 p.m. Attorney Lindsay Swiger emailed Plaintiff shortly thereafter regarding settlement.

### **C. October 31, 2025 Subpoena Referencing Termination**

On October 31, 2025, defense counsel in the separate Curtiss-Wright case (Attorney T. Chase Samples) issued a subpoena that referenced Plaintiff's termination—demonstrating immediate knowledge and improper coordination between Amentum and another employer represented by Jackson Lewis.

### **D. Front Pay Necessity**

The immediate termination following sworn testimony, combined with cross-case attorney coordination and hostility, makes reinstatement impossible. Plaintiff seeks **front pay for not less than ten (10) years**.

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## **V. COUNTS**

### **COUNT I – Gender Discrimination (Title VII)**

#### **Against Defendant Amentum**

Defendant Amentum discriminated against Plaintiff on the basis of sex by treating her less favorably than similarly situated male employees in terms of job assignments, evaluations, and disciplinary actions. The discriminatory conduct violated Title VII of the Civil Rights Act of 1964.

Plaintiff experienced gender-based discrimination from Supervisors Dakota Thomas, Elias Velasquez and Site Manager Clarence Xander. Plaintiff's initial complaints about the uneven

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work load was ignored. Instead Supervisors Thomas and Velasquez harassed and tried to bully Plaintiff into continuing with the workload unbalance. Xander told Plaintiff not to contact Yusef Abdul-Jami anymore which would affect work related issues in the NDT department. This behavior from Supervision and Management could only be attributed to gender-based discrimination.

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## **COUNT II – Retaliation (Title VII)**

### **Against Defendant Amentum**

Plaintiff engaged in protected activity by reporting discrimination, safety violations, and noncompliance. Defendant Amentum retaliated against Plaintiff through adverse employment actions, including isolation, denial of opportunities, and the creation of intolerable working conditions, in violation of Title VII.

Plaintiff was terminated on October 29, 2025 after being told that she needed to return to work. Plaintiff sent an email to the Union Representative, Jamie Littlefield and the Union Rep told Plaintiff that she needed to return to work before a step 3 meeting could be held. Plaintiff stated that after the first 30 day leave of absence a step 3 meeting did not occur. Plaintiff agreed to meet offsite to get resolution but the Union Rep. did not respond and then refused to accommodate Plaintiff's reasonable request. This ultimately led to Plaintiff's termination which was retaliatory in nature.

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## **COUNT III – Hostile Work Environment (Title VII)**

### **Against Defendant Amentum**

Defendant Amentum subjected Plaintiff to a hostile and abusive work environment based on her gender and protected activity.

On **May 28, 2025**, coworker **Elias Velasquez** yelled and cursed at Plaintiff in the workplace, stating, "You don't need this f---ing s--- in here," in the presence of male employees. When Plaintiff reported the incident to Human Resources and **Site Manager Clarence Xander**, she was told that she "cursed too." When Plaintiff asked what she supposedly said, Xander responded, "It doesn't matter." Xander repeated that statement on **July 2, 2025**, again refusing to identify the alleged statement or witnesses.

Amentum later accepted Velasquez's false accusation that Plaintiff said, "Who the f--- do you think you are," and used it to justify disciplinary actions. Plaintiff was never allowed to see the written witness statements that management collected from the men involved.

The conduct of Velasquez and management's indifference created a gender-based, intimidating, and retaliatory environment that interfered with Plaintiff's ability to perform her job.

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Defendant **Amentum Government Services Parent Holdings LLC**, through its supervisors and managers, permitted and perpetuated this conduct in violation of **Title VII of the Civil Rights Act of 1964**, thereby **stating a claim upon which relief can be granted**.

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#### **COUNT IV – Defamation (Florida Law)**

##### **Against Defendants Elias Velasquez and Dakota Thomas**

Plaintiff realleges and incorporates the preceding paragraphs.

Following Plaintiff's report of **Elias Velasquez's** profanity and harassment, Defendants began circulating false statements about Plaintiff's conduct. **Velasquez, Dakota Thomas, and Ja'nicé Hughes** falsely alleged that Plaintiff took unauthorized leave from work. On or about **July 31–August 1, 2025**, Thomas stated during a disciplinary meeting that Velasquez "did not authorize Plaintiff's leave," despite Velasquez previously telling Plaintiff he would approve **July 31, 2025**, and that she needed to obtain administrative approval for **August 1, 2025**. Plaintiff spoke directly with Payroll, Tionne Thomas who approved the request.

Nevertheless, management—including **Thomas, Hughes, and Velasquez**—recorded and repeated the false claim that Plaintiff had taken unauthorized leave, and used that fabrication to justify disciplinary action. During the same meeting, **Heather Gunn**, Business Manager, sat silently and permitted the false accusations to proceed, thereby ratifying them.

Plaintiff was falsely accused of cursing at Velasquez on May 28, 2025. When she requested details, **Site Manager Clarence Xander** refused to identify the witnesses, saying repeatedly, "It doesn't matter." On **August 5, 2025**, Plaintiff was finally told she allegedly said, "Who the f--- do you think you are," which she never said.

These false statements were circulated among Amentum management, placed in Plaintiff's personnel file, and relied upon to damage her professional reputation and justify termination. Defendants acted with malice or reckless disregard for the truth.

The foregoing conduct constitutes **Defamation under Florida law**, thereby **stating a claim upon which relief can be granted**.

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#### **COUNT V – Intentional Infliction of Emotional Distress (Florida Law)**

##### **Against Defendants Xander, Hughes, Gunn, Thomas, Velasquez, and Abdul-Jami**

Plaintiff realleges and incorporates the preceding paragraphs.

Defendants engaged in extreme and outrageous conduct by:

- Allowing **Velasquez** to curse at and demean Plaintiff and then falsely accuse her of cursing back;

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- Fabricating claims that Plaintiff took unauthorized leave when Payroll had approved the time off;
- Conducting a disciplinary meeting in which **Thomas, Hughes, and Velasquez** repeated false accusations while **Gunn**, the Business Manager, remained silent and complicit;
- Refusing to provide Plaintiff with copies of the witness statements collected from male employees; and
- Using these falsehoods as a basis for discipline and eventual termination.

**Clarence Xander** repeatedly told Plaintiff “it doesn’t matter” when she tried to defend herself, demonstrating reckless disregard for the truth and Plaintiff’s well-being. These acts were intentional or, at minimum, reckless, and were calculated to cause severe emotional distress.

Plaintiff suffered humiliation, anxiety, sleeplessness, and emotional trauma as a direct result. The foregoing conduct constitutes **Intentional Infliction of Emotional Distress under Florida law**, thereby **stating a claim upon which relief can be granted**.

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#### **COUNT VI – Civil Conspiracy (Florida Law)**

**Against Defendants Xander, Hughes, Gunn, Thomas, Velasquez, and Abdul-Jami**

The individual Defendants combined for the purpose of injuring Plaintiff’s reputation and employment standing, committing overt acts in furtherance of that goal, causing Plaintiff actual damages.

All defendants in this case have conspired to make the workplace intolerable and unbearable to cause a constructive discharge. Plaintiff in good faith came to work to do her job to the best of her ability only to be met with no support from Supervisors, Thomas and Velasquez. There was no support from Site Manager Clarence Xander whose attitude towards my complaints were dismissive and unsupportive. Heather Gunn and Ja’Nice Hughes did not do anything to protect me from the retaliation or discrimination, in fact they participated in it.

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#### **COUNT VII – Negligent Supervision (Florida Law)**

**Against Defendant Amentum**

Amentum knew or should have known of the individual Defendants’ misconduct and failed to properly supervise, train, or discipline them, resulting in harm to Plaintiff.

Dakota Thomas, Elias Velasquez and Clarence Xander perpetuated gender-based discrimination and did everything to protect Yusef Abdul-Jami. Even with evidence ie. noncompliant process control logs, pictures of locker 2 and the text messages where Abdul-Jami stated that *he was not trying to do extra work, that he didn’t care and anymore projects that I come up with in the future would be on me*.



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**COUNT VIII – Whistleblower Retaliation / Violation of Public Policy (Florida Law)**

**Against Defendants Amentum, Xander, Hughes, Gunn, Thomas, Velasquez, and Abdul-Jami**

Plaintiff engaged in protected activity by reporting violations of safety and quality requirements. Defendants retaliated against her for these protected disclosures in violation of Florida public policy and applicable whistleblower protections.

Plaintiff handed proof to Human Resources, Ja'nice Hughes that the Liquid Penetrant process logs were noncompliant, and Supervision and Management took no corrective action. Instead the retaliation against me continued. I spoke with Corporate about the issues that I was facing and nothing changed.

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**COUNT IX – Breach of Contract (Florida Law)**

**Against Defendants Amentum, Xander, Hughes, and Gunn**

Plaintiff realleges and incorporates by reference the preceding paragraphs. Defendant **Amentum Government Services Parent Holdings LLC** and its managerial employees—**Clarence Xander (Program Manager)**, **Ja'nice Hughes (Human Resources)**, and **Heather Gunn (Business Manager)**—entered into and operated under written employment and labor agreements, including the **Collective Bargaining Agreement (CBA)** and Amentum's **Human Resources Policies**, which required compliance with progressive-discipline procedures, leave-of-absence protections, and anti-retaliation standards.

Plaintiff fully performed her obligations and remained on approved leave when Defendants:

- **Xander** issued a termination letter falsely citing “unauthorized absence”;
- **Hughes** failed to record and maintain Plaintiff's approved medical leave; and
- **Gunn** altered or approved time records contrary to company policy.

Additionally, the Union's failure to act after receiving Plaintiff's written request for representation (*Exhibit G*) violated the grievance procedures incorporated into the Collective Bargaining Agreement. This non-response deprived Plaintiff of the contractual right to representation and remedy and further constitutes a breach of contract under Florida law.

These acts breached Amentum's contractual promises of fair treatment and adherence to written procedures, directly causing Plaintiff's loss of employment on October 29, 2025, wages, benefits, and related damages.

The foregoing conduct constitutes **Breach of Contract under Florida law**, thereby **stating a claim upon which relief can be granted**.

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**COUNT X – Wrongful Termination (Florida Law)**

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**Against Defendants Amentum, Xander, Hughes, Gunn, and Thomas**

Plaintiff realleges and incorporates the preceding paragraphs.

On **October 29, 2025**, Defendant **Amentum Government Services Parent Holdings LLC**, acting through **Clarence Xander, Ja'nice Hughes, Heather Gunn, and Dakota Thomas**, terminated Plaintiff's employment under false pretenses, citing "unauthorized absence." The stated reason was pretextual and contradicted Amentum's own records, which showed that Plaintiff obtained prior approval from **Elias Velasquez** for July 31, 2025, and from **Payroll** for August 1, 2025.

Plaintiff's termination occurred less than twenty-four hours after she testified in a federal deposition in *Nelson v. Curtiss-Wright*, in which she described similar discriminatory and retaliatory conduct. The timing and circumstances of the termination demonstrate that Defendants acted with retaliatory and discriminatory motive.

Defendants' actions violated Florida's **public policy prohibiting termination for engaging in protected activity**, including opposing unlawful employment practices and reporting safety and compliance violations at a federal installation. The termination further violated **Florida's Whistleblower Act, Fla. Stat. § 448.101 et seq.**, and the anti-retaliation provisions of **Title VII**.

As a direct and proximate result, Plaintiff suffered loss of employment, wages, benefits, emotional distress, and reputational harm.

The foregoing conduct constitutes **Wrongful Termination in Violation of Public Policy under Florida law**, thereby **stating a claim upon which relief can be granted**.

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**COUNT XI – Retaliation Based on Post-Deposition Termination (Title VII)**

**Against Defendant Amentum**

1. Plaintiff engaged in protected activity on October 28, 2025.
  2. Plaintiff was terminated on October 29, 2025.
  3. Defense counsel referenced the termination in a subpoena on October 31, 2025.
  4. The timing demonstrates retaliatory motive.
  5. Defendant violated 42 U.S.C. § 2000e-3(a).
  6. Plaintiff suffered significant damages.
  7. Reinstatement is not feasible; Plaintiff seeks front pay.
- 

**VI. DAMAGES**



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Plaintiff has suffered lost wages, emotional distress, reputational harm, and other compensatory damages. Lost wages include:

First leave (May 30 – July 1, 2025) at \$45.46/hour × 184 hours = \$8,364.64

Second leave (August 7 – October 28, 2025) at \$45.46/hour × 488 hours = \$22,184.48

Total wage loss to date: \$30,549.12.

**Front Pay:** Plaintiff seeks front pay for a minimum of ten (10) years or through her work-life expectancy.

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## VII. PRAYER FOR RELIEF

Plaintiff respectfully requests:

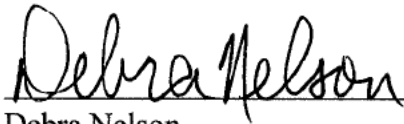
- A. Back pay and front pay for at least ten (10) years;
- B. Compensatory damages;
- C. Punitive damages where permitted;
- D. Costs and interest;
- E. Such other relief as the Court deems proper.

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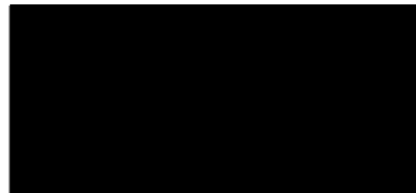
## VIII. EXHIBIT INDEX

- Exhibit A – Formal Complaint
- Exhibit B – Request for Formal Investigation
- Exhibit C – Impact Statement
- Exhibit D – Timeline of Events
- Exhibit E – Termination Letter (Oct. 29, 2025)
- Exhibit F – Email from Attorney Swiger
- Exhibit G – Email to Union Representative
- Exhibit H – Deposition Notice (Oct. 28, 2025)
- Exhibit I – Deposition Transcript Excerpts (if available)
- Exhibit J – Subpoena referencing termination (Oct. 31, 2025)
- Exhibit K – Leave/medical documentation
- Exhibit M – Evidence reinstatement is not feasible

Respectfully submitted 20th of November, 2025,



Debra Nelson  
Plaintiff, Pro Se



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**CERTIFICATE OF SERVICE**

I hereby certify that a true and correct copy of the foregoing **Fourth Amended Complaint**, together with the attached was served upon counsel for Defendants by Email addressed as follows:

**Lindsay D. Swiger**  
**Zackary A Blanton**  
Jackson Lewis P.C.  
501 Riverside Avenue, Suite 902  
Jacksonville, FL 32202  
Email: [Lindsay.Swiger@jacksonlewis.com](mailto:Lindsay.Swiger@jacksonlewis.com)  
[Zackary.Blanton@jacksonlewis.com](mailto:Zackary.Blanton@jacksonlewis.com)

Respectfully submitted 20th of November, 2025,



Debra Nelson  
Plaintiff, Pro Se



## EXHIBIT A

### Subject: Formal Complaint – Gender-Based Mischaracterization and Retaliatory Conduct

May 30, 2025

Dear HR Representative Janice Hughes and Union Representative James Carnley,

I am formally submitting this complaint regarding inappropriate and discriminatory conduct directed at me by management, specifically related to how I was characterized when advocating for myself in the workplace.

During a recent meeting, after I raised valid concerns about workload distribution and a supervisor's inappropriate behavior, I was labeled as having an "attitude" and being "aggressive." These labels were used by Clarence Xander in response to my efforts to speak up about the lack of support from my coworker, the use of profanity by a supervisor, and the fact that I was being unfairly held accountable for shared responsibilities.

I want to make it clear that my behavior was professional and focused on defending my rights and boundaries. These descriptors — "aggressive," "attitude," etc. — are often weaponized against women in professional settings to silence or undermine them when they assert themselves. In this context, I believe they reflect **gender-based bias**, and I am concerned that this language was used to discredit my valid concerns and shift blame onto me.

Further, this mischaracterization appears to be **retaliatory**, given that I raised prior concerns about the locker assignment, provided evidence of my efforts, and asked what would be done about a supervisor cursing at me. I asked the Manager directly what would be done about it. The Manager dismissed my concern by saying: "**That doesn't matter right now.**" Rather than addressing those issues, the focus was redirected toward attacking my character.

I am requesting the following:

1. A formal review of the conduct and comments made by Clarence Xander and others present in the meeting.
2. A review of whether gender-based bias or double standards influenced how I was treated.
3. Clarity on how the company defines and applies terms like "aggressive" and "attitude," and whether those standards are being applied fairly across all employees.
4. Documentation of this complaint in my employee file and reassurance that no retaliation will result from my decision to speak out.

I would like to meet with both HR and union representation to discuss how this situation will be addressed.

Please confirm receipt of this complaint and advise on the next steps.

FILED USDC FLND PN  
NOV 25 '25 443102

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AB

**EXHIBIT A**

Sincerely,

A handwritten signature in black ink that reads "Debra Nelson". The signature is written in a cursive, flowing style.

Debra Nelson

NDI Technician/ Work Center 520



## EXHIBIT B

### **Subject: Follow-Up to Leave of Absence Notice – Request for Formal Investigation**

May 30, 2025

Dear HR Representative Janice Hughes and Union Representative James Carnley,

This message is a follow-up to the email I sent to my manager on May 29, 2025, in which I informed them that I will be taking a leave of absence effective May 30, 2025. I cited the workplace as not being a safe space for women — a conclusion I have reached after repeated incidents of unprofessional conduct, gender-based disregard, and failure by management to appropriately address my concerns.

As outlined in my prior communication, these are not isolated experiences. The recent locker project situation, and the way I was treated during the subsequent meeting — including being cursed at by a supervisor and unfairly accused of “aggressive” behavior for asserting my responsibilities — further highlight a toxic pattern. This, combined with the lack of support or intervention from my union representative during that meeting, has left me with no choice but to step away from the environment for the sake of my mental and emotional well-being.

When I brought up the fact that a supervisor **cursed at me** in a hostile and unprofessional manner, I asked the Manager directly what would be done about it. The Manager dismissed my concern by saying: **“That doesn’t matter right now.”**

After I submitted the text messages to management — which clearly documented my coworker’s refusal to complete assigned work and my repeated attempts to involve him — the Site Manager told me that I was no longer allowed to text my coworker.

I believe this directive was retaliatory and designed to protect my coworker from further documentation of his neglect, rather than to resolve any interpersonal conflict or improve communication. It effectively punished me for providing valid evidence and further limited my ability to coordinate work-related tasks.

This response shows a clear **pattern of management suppressing my voice**, protecting male coworkers from accountability, and creating an **environment where I am penalized for following procedures, speaking up, and doing the work.**

I am formally requesting:

- A thorough and unbiased investigation into my complaints, including potential violations of workplace safety, respect, and equity policies;
- A review of management’s handling of interpersonal conflicts and accountability;
- Assurance that future conduct and expectations will align with a safe, respectful, and equitable workplace for all employees — including women.

## EXHIBIT B

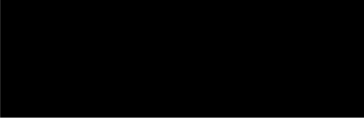
Please confirm receipt of this message and provide next steps regarding how this investigation will proceed. I remain open to dialogue and resolution, but I must insist that these concerns are taken seriously and addressed with transparency.

Sincerely,

A handwritten signature in black ink that reads "Debra Nelson". The script is cursive and fluid.

Debra Nelson

NDI Technician/Work Center 520





## EXHIBIT C

### Impact Statement – Emotional and Mental Health Effects

Over the past several weeks, I have experienced escalating verbal abuse, exploitation, and disrespect in my workplace — both from a coworker and from multiple members of management. Despite my efforts to maintain professionalism and complete my assigned duties, I was repeatedly ignored, burdened with excessive work, and blamed for responsibilities that were not mine alone.

After raising concerns and defending myself against false accusations, I was met with hostility, cursed at by a supervisor, and later falsely accused of misconduct. Instead of being supported or protected, I was labeled “aggressive” and accused of having an “attitude” — language often used to discredit women in the workplace.

The moment I was told “that doesn’t matter right now” after reporting verbal abuse by a supervisor marked a clear signal that my well-being was not valued. It confirmed that my concerns would not be taken seriously, no matter how professionally I raised them.

After I submitted the text messages to management — which clearly documented my coworker’s refusal to complete assigned work and my repeated attempts to involve him — the Site Manager told me that I was no longer allowed to text my coworker.

I believe this directive was retaliatory and designed to protect my coworker from further documentation of his neglect, rather than to resolve any interpersonal conflict or improve communication. It effectively punished me for providing valid evidence and further limited my ability to coordinate work-related tasks.

This response shows a clear **pattern of management suppressing my voice, protecting male coworkers from accountability, and creating an environment where I am penalized for following procedures, speaking up, and doing the work.**

This lack of support — combined with repeated mistreatment and unjust scrutiny — created an **emotionally unsafe and psychologically damaging** work environment. It was a key factor in my decision to take leave, and I am now pursuing **short-term disability** because of the emotional and mental toll.

These events have left me feeling **emotionally unsafe, psychologically overwhelmed, and unsupported** by the very people who are meant to enforce fairness and accountability. I now experience:

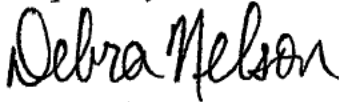
- **Constant stress and anxiety** related to work interactions
- **Sleep disturbances**
- **Panic and dread** about returning to a hostile environment

## EXHIBIT C

- A deep sense of **injustice and powerlessness**, especially when defending myself leads to further retaliation

As a result, I have made the decision to take a leave of absence effective May 30, 2025, and am actively pursuing a short-term disability claim on the recommendation of my healthcare provider. This is no longer a safe or healthy environment for me, and my mental health has significantly deteriorated due to this mistreatment.

Respectfully Submitted June 2, 2025,



Debra Nelson

NDI Technician / Work Center 520



**EXHIBIT D****Timeline of Events**

**May 28** – I was called into a meeting in the equipment room at 2:25pm 5 minutes before my shift ended. I told Elias that my shift was ending and he could talk to Yusef who was standing right next to him. In the meeting was the second shift Maintenance Supervisor, Elias Valasquez, Union Representative, Jimmy Murphy; first shift Maintenance Supervisor, Dakota Thomas, NDI Technician, Yusef Abdul-Jami and myself. In the meeting I was being questioned about the contents of locker 2, I said that Yusef is standing right there and pointed at him. Elias said “you don’t have to have an attitude and you don’t need this fucking shit in here”. I told Elias you don’t need to curse at me and he had no right to be cursing me. The other men that were in the room said nothing. Elias dismissed what I said and continued to ask me if I needed to keep certain parts in the locker. I continued to say Yusef is right here why aren’t you asking him because he was responsible for locker 2. Elias said that we could keep the spare parts in the Tool Room. I said that’s not how NDI works. We usually keep spare parts along with our other equipment. Elias then said that we can just keep these extra probes in the Tool Room and Dakota agreed. I then said “I would consult with the NDI Level III if I were you”. Elias said I’m not doing nothing we just going to put those probes in the Tool Room and Dakota agreed. After the meeting I immediately went over to HR to report the Supervisor cursing at me.

**May 29** – In a meeting with James Carnley, Chief Union Steward; Janice Hughes, HR Generalist; Heather Gunn, Business Manager; Clarence Xander, Site Manager; Dakota Thomas, Maintenance Supervisor and myself. In the meeting we discussed Elias cursing at me. I discussed the locker issue and Yusef not keeping up with the process control in the NDI program. I told them that process control has not been in compliance since the previous NDI Technician left. I told them that airplanes inspected without the process control being done prior to the inspection could get the company fined. I was told by Clarence Xander that I was not to text Yusef anymore. I was told by Clarence that my response to Yusef was aggressive, and I was told I had an attitude. There was absolutely no discipline or accountability for Yusef not pulling his share of the workload. I left that meeting knowing that management was covering for Yusef and somehow, I was made the bad guy in this situation. I was not supported in that meeting and in the workload situation.

**May 30** – My leave of absence began. On May 30<sup>th</sup> I tried to log in to Costpoint to sign my time for the week. I was locked out and Payroll already went home. I would have to contact Payroll on Monday to get my password reset.

**June 2** – I contacted the Payroll Generalist to reset my password. When I went into my time I noticed times were moved around. I asked Tionne about it and she said that I had PTO. I said we talked about this last week and you said I didn’t have any PTO left. Tionne said Heather Gunn signed my time on Friday May 30<sup>th</sup>. I told Tionne she didn’t have to do that and I didn’t give her permission to go into my time. Heather moved my hours around from the previous week. I asked

## EXHIBIT D

Tionne to reopen my time so I could put the correct hours where they belong. I believe Heather was trying to set me up for stealing time.

**July 2** - When I returned from my leave of absence I had a meeting with James Carnley, Chief Union Steward; Heather Gunn, Business Manager; Clarence Xander, Site Manager; Dakota Thomas, Supervisor and myself. In this meeting Clarence stated he didn't know I was coming back on that day. I clearly stated in my leave of absence paperwork and to Corporate that I would be coming back on July 2<sup>nd</sup> after all discrepancies within the NDI program were corrected. When I got back the broken probe was still in the kit and there were a few other items that were not in compliance. In the meeting I asked Clarence about the statement that I cursed at a Supervisor and Clarence said "it didn't matter". I asked him what was the issue and why wouldn't he tell me what I was accused of saying and Clarence said again "it didn't matter". I told Clarence that was defamation. Clarence then said he wanted to end the meeting.

**July 24** – I did a 6300 hour eddy current inspection on drain holes on aircraft 037 over in the Phase hangar. I signed the job off after the inspection in the Phase hangar.

**July 25** – I messaged Dakota letting him know I was running late. Dakota then asked what time I thought I would get to work and I said about 2:55pm. Dakota then said that we will meet on Tuesday July 29<sup>th</sup> at 2pm. I asked what this meeting was about and Dakota said about a work order that was signed off and he had some questions. I asked what work order and Dakota said it would be discussed on Tuesday.

When I got to work, I logged on to see if I had any work in the queue. I noticed the aircraft and job I did the night before was still in the queue. When I opened up the job the corrective action was blank. So I went to Phase to see what the issue was. I spoke with the 2<sup>nd</sup> shift Lead, Tom Beauman and asked what was up with aircraft 037 and Tom said that the aircraft was not ready for the 6300 hour inspection I did the night before because it wasn't defueled. Tom said there were panels that also needed to be removed, and I was supposed to inspect the drain holes from the inside after all that was done. I said I didn't realize that and I asked when it will be ready. Tom said that wouldn't happen that night because there was other maintenance that needed to be completed. Tom said that when he saw that I had signed it off he realized that was a mistake because he did that same thing last month (June) with the other NDI Tech Yusef. Tom said when the aircraft is ready they would call NDI. I went back to Hangar 100 and told Shop Lead 100-200, Phillips the status on aircraft 037.

**July 29** – At the 2pm meeting in attendance was Supervisor, Dakota Thomas; Business Manager, Heather Gunn; HR Representative, Janice Hughes; Elias Valasquez, 2<sup>nd</sup> shift Supervisor; Union Chief Steward, James Carnley and me. So, Dakota started the meeting asking what happened with the 6300 hour inspection. I said, "so this is what we're doing"? I said the same thing happened last month with Yusef. Did you call the Business Manager and the HR Representative for him? Dakota said he didn't know anything about that. I repeated what the 2<sup>nd</sup> shift Phase Lead Tom Beauman told me. Dakota said "well I'll have to look into that". Dakota didn't sound like he believed me.

## EXHIBIT D

Which has been a consistent pattern since May when I reported Yusef for not helping with the locker. That meeting was supposed to be Dakota's opportunity to write me up to try and create a paper trail. Since he didn't know that I knew that Yusef did the same thing he was unable to accomplish that goal.

**August 4** – I returned to work and saw that Yusef put a note in the turnover log stating that the cable that I said was broken worked before I used it and it worked after I used it. This is false because I checked that cable and used other probes to verify the issue. Even with other probes the cable still did not work. I 100% stand behind what I said, **the cable was broken**. Yusef in order to deflect to get the attention off of himself and try to discredit me, tells Supervision the cable worked, and they believed him. Yusef had a bag with cables in them that I personally saw. After I reported him for not helping with the locker, he said he didn't know what happened to the bag.

When I brought the issue up with Elias and told him that Yusef switched that cable out with the broken one and was trying to discredit me. Elias immediately jumped to Yusef's defense, which is not uncommon, and said that the cable worked. I told Elias that the cable did not work and that Yusef switched it out. Elias then says to me that I have an attitude, he has to talk to me like I'm a child, then he says go ahead and do the report cause I'm going to look stupid and everybody has a problem with me. I told Elias that he is starting to piss me off because y'all always act like I don't know what I'm talking about. This is the incredibly hostile environment that I am subjected to. Everything I say is dismissed if it's contrary to my male counterpart. The gender-based characterizations used to minimize my concerns all of this creates a hostile work environment.

**August 5** - After repeatedly asking since May 30, I was finally informed by Corporate that I had been accused of saying, "Who the fuck do you think you are." I **categorically deny making this statement**. While I may curse in casual conversation, I have never cursed at a supervisor or used language in that tone or phrasing. That statement is **not consistent with how I speak** — it does not reflect my vernacular, and I would never address management in such a manner. The phrasing sounds more like something a Caucasian person would say, I am Black and the language attributed to me feels intentionally mischaracterized. Despite my repeated efforts to clarify this issue, Corporate **refused to tell me who made the accusation**, leaving me defenseless against a false and discriminatory claim. This concealment has added to my emotional distress and demonstrates continued bad faith by management.

**August 6** - Dakota Thomas along with the HR Rep Janice Hughes and the Business Manager Heather Gunn issued me a written reprimand after the 2 complaints that I filed on August 4th & 5th. The reprimand was for an unauthorized absence. I requested time off for a court date on July 31st. I told my Supervisor Elias Valasquez on July 29th that I didn't have enough time to be off for both days and Elias said I'll approve the time that you have off but you will have to go upstairs. I went on July 30th and talked to the Payroll Specialist Tionne. I told her that I needed to be off Thursday and Friday July 31<sup>st</sup> and August 1<sup>st</sup> but I didn't have enough time. She said I would need to use my personal time and then use unauthorized leave. I said ok because I've done it many times

## **EXHIBIT D**

before. However, in the meeting on August 6<sup>th</sup> I was told that Elias did not approve my leave and that I told Tionne my time was authorized. At no point did anyone tell me that I had to talk to the HR Rep to take unauthorized time off because I didn't have to do it before. If my leave was not approved as Elias said then why was that not communicated to me verbally, by text or email. I was being set up to fabricate a write up.



## EXHIBIT E



October 29, 2025

Debra Nelson



Subject: Notice of Termination

In accordance with the Company's Human Resources Policy AM-HRS-PL-0309-LA, titled Professional Conduct (made available to you on the Company's Intranet), and IAW Exhibit B – Progressive Discipline Guide of the applicable CBA, Rule #5d unauthorized absence for three consecutive work shifts, this memorandum serves as notification you are being terminated effective today, October 29, 2025, for unauthorized absence for three consecutive work shifts.

As previously mentioned, you have been out on leave of absence since August 8, 2025. You were notified on September 10, 2025, that Hartford denied your Short-Term Disability and FMLA claim. Additionally, you were also notified that the WC claim you filed on September 12, 2025, was denied by our third-party vendor, Sedgwick, on October 14, 2025. Given the outcomes of these claims and the necessity of your attendance for your role to perform the essential functions of your position, as it would be an undue hardship to allow you to remain on leave indefinitely, you were notified on October 17, 2025, that you were required to return to work on October 20, 2025. You failed to report to work as instructed for your shift, and were sent a follow-up email on October 20, 2025, advising that if you failed to report to work by Wednesday, October 22, 2025, additional discipline up to and including termination would be taken.

Your final paycheck through October 29, 2025, and information on your benefit continuance will be forwarded to your home address. Please contact the Human Resource office at 850-484-6250 if you have questions.

Regards,

Clarence  
Xander

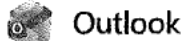
Digitally signed by Clarence Xander  
DN: cn=Clarence Xander, o=T34716,  
ou=Amentum,  
email=clarence.xander@amentum.com  
Reason: I am approving this document

Clarence Xander  
Program Manager

Enclosure: Benefits Continuation Letter  
CC: Personnel File



## EXHIBIT F



**RE: Nelson v. Amentum, Case No. 3:25-cv-01447-MCR-ZCB**

**From** Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>

**Date** Wed 10/29/2025 3:52 PM

**To** Debra Nelson <[REDACTED]>

**Cc** Blanton, Zackary A. (Jacksonville) <Zackary.Blanton@jacksonlewis.com>

Good afternoon Ms. Nelson:

The Court has docketed your Motion for Leave to File Third Amended Complaint. Defendants' deadline to respond to the Motion is November 10.

In your email below, you stated that the Third Amended Complaint will be fully self-contained and will specify which claims are asserted against which defendants. To date, we have not received a revised draft of the Third Amended Complaint which meets these criteria. We request that you provide a revised draft of the proposed Third Amended Complaint for our review as soon as possible.

Based on the proposed Third Amended Complaint that was filed with your Motion, we have no choice but to oppose the Motion because it is not clear what claims are being asserted, what allegations are asserted in support of the claims, and which claims are asserted against which defendants.

We are available to discuss this further at your convenience.

Thank you,  
Lindsay



**Lindsay D. Swiger**  
Attorney at Law

**Jackson Lewis P.C.**

501 Riverside Ave  
Suite 902

Jacksonville, FL 32202

Direct: (904) 638-2657 | Main: (904) 638-2655 | Mobile: (904) 703-3411

[Lindsay.Swiger@jacksonlewis.com](mailto:Lindsay.Swiger@jacksonlewis.com) | [www.jacksonlewis.com](http://www.jacksonlewis.com)

**From:** Debra Nelson <denelson62@outlook.com>

**Sent:** Wednesday, October 22, 2025 10:35 PM

**To:** Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>

**Cc:** Blanton, Zackary A. (Jacksonville) <Zackary.Blanton@jacksonlewis.com>; Jacksonville Docketing <JacksonvilleDocketing@jacksonlewis.com>; Herrera, Janet (Orlando) <Janet.Herrera@jacksonlewis.com>

**Subject:** Re: Nelson v. Amentum, Case No. 3:25-cv-01447-MCR-ZCB

Dear Ms. Swiger,

## EXHIBIT F

Thank you for your email.

I do not oppose Defendants' request for an extension of time to respond until the Court rules on my Motion for Leave to File the Third Amended Complaint.

The Third Amended Complaint will be fully self-contained and will specify which claims are asserted against which defendants.

Thank you for confirming that future service emails should copy Ms. Herrera and the Jacksonville Docketing address.

Sincerely,  
Debra Nelson

### Get Outlook for Android

**From:** Debra Nelson <[REDACTED]>  
**Sent:** Wednesday, October 22, 2025 10:27:33 PM  
**To:** Swiger, Lindsay Dennis (Jacksonville) <[Lindsay.Swiger@jacksonlewis.com](mailto:Lindsay.Swiger@jacksonlewis.com)>  
**Cc:** Blanton, Zackary A. (Jacksonville) <[Zackary.Blanton@jacksonlewis.com](mailto:Zackary.Blanton@jacksonlewis.com)>; Jacksonville Docketing <[JacksonvilleDocketing@jacksonlewis.com](mailto:JacksonvilleDocketing@jacksonlewis.com)>; Herrera, Janet (Orlando) <[Janet.Herrera@jacksonlewis.com](mailto:Janet.Herrera@jacksonlewis.com)>  
**Subject:** Re: Nelson v. Amentum, Case No. 3:25-cv-01447-MCR-ZCB

Who are these other people on this email thread

### Get Outlook for iOS

**From:** Swiger, Lindsay Dennis (Jacksonville) <[Lindsay.Swiger@jacksonlewis.com](mailto:Lindsay.Swiger@jacksonlewis.com)>  
**Sent:** Wednesday, October 22, 2025 12:42:12 PM  
**To:** Debra Nelson <[REDACTED]>  
**Cc:** Blanton, Zackary A. (Jacksonville) <[Zackary.Blanton@jacksonlewis.com](mailto:Zackary.Blanton@jacksonlewis.com)>; Jacksonville Docketing <[JacksonvilleDocketing@jacksonlewis.com](mailto:JacksonvilleDocketing@jacksonlewis.com)>; Herrera, Janet (Orlando) <[Janet.Herrera@jacksonlewis.com](mailto:Janet.Herrera@jacksonlewis.com)>  
**Subject:** RE: Nelson v. Amentum, Case No. 3:25-cv-01447-MCR-ZCB

Dear Ms. Nelson:

We are in receipt of Plaintiff's Motion for Leave to File Third Amended Complaint. We will discuss this matter with the Defendants and let you know our clients' position on the Motion. At the very least, the Third Amended Complaint should include all allegations within the document, rather than reference other unspecified complaints, and it should clearly identify which claims are pled against which defendants.

As we discussed yesterday, the Defendants intend to file a motion for extension of time to respond to the Second Amended Complaint because the deadline for certain of the Defendants to respond to the Second Amended Complaint is October 27, 2025. If the Court grants your motion for leave to file a Third Amended Complaint, there is no reason for the Defendants to respond to the Second Amended Complaint because it will no longer be in effect. For this reason, the Defendants intend to file a motion to extend the Defendants' deadline to respond to the operative pleading until the Court rules on your motion for leave to file a Third Amended Complaint. Please let us know if you oppose or agree to this request for an extension of time so we can notify the Court of your position.

We are available to discuss this further at your convenience.

## EXHIBIT F

Additionally, we request that you copy Janet Herrera and Jacksonville Docketing (both copied here) on future service emails.

Thank you,  
Lindsay



**Lindsay D. Swiger**  
Attorney at Law

**Jackson Lewis P.C.**

501 Riverside Ave  
Suite 902

Jacksonville, FL 32202

Direct: (904) 638-2657 | Main: (904) 638-2655 | Mobile: (904) 703-3411

[Lindsay.Swiger@jacksonlewis.com](mailto:Lindsay.Swiger@jacksonlewis.com) | [www.jacksonlewis.com](http://www.jacksonlewis.com)

**From:** Debra Nelson <[REDACTED]>

**Sent:** Wednesday, October 22, 2025 9:56 AM

**To:** Swiger, Lindsay Dennis (Jacksonville) <[Lindsay.Swiger@jacksonlewis.com](mailto:Lindsay.Swiger@jacksonlewis.com)>; Blanton, Zackary A. (Jacksonville) <[Zackary.Blanton@jacksonlewis.com](mailto:Zackary.Blanton@jacksonlewis.com)>

**Subject:** Nelson v. Amentum, Case No. 3:25-cv-01447-MCR-ZCB

Courtesy Copy – Motion for Leave to File Third Amended Complaint

Dear Ms. Swiger and Mr. Blanton,

Attached please find a courtesy copy of my Motion for Leave to File Third Amended Complaint and the proposed Third Amended Complaint that was filed with the Court today in ***Nelson v. Amentum Government Services Parent Holdings LLC, et al.***, Case No. 3:25-cv-01447-MCR-ZCB (N.D. Fla.).

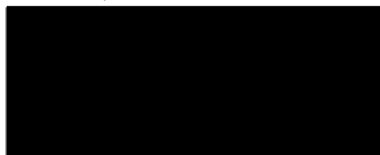
**This filing clarifies that:**

- The Title VII claims (Counts I–III) are directed solely at Amentum Government Services Parent Holdings LLC, and
- The state-law claims (Counts IV–VIII) are asserted against the individual defendants.

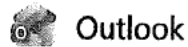
**I have included you both on this message for notice and record purposes.**

A hard-copy filing has also been sent to the Clerk of Court via USPS Priority Mail Express for docketing. Tracking number ER223548396US

**Respectfully,**  
**Debra Nelson**  
**Plaintiff, Pro Se**



## EXHIBIT G



### Re: Clarification Request – Step 3 Grievance Meeting

From Debra Nelson <[REDACTED]>  
Date Thu 10/16/2025 12:40 PM  
To Jamie Littlefield <jlittlefield@iam75.org>  
Cc james Carnley <hs11oo@hotmail.com>

I want to be clear that I am in the local area and available to meet, but I am not returning to the worksite while on medical leave because of the hostile conditions that remain unresolved.

So is this the representation that I paid for?

[Get Outlook for Android](#)

From: Debra Nelson <[REDACTED]>  
Sent: Thursday, October 16, 2025 11:37:24 AM  
To: Jamie Littlefield <jlittlefield@iam75.org>  
Cc: James Carnley <hs11oo@hotmail.com>  
Subject: Re: Clarification Request – Step 3 Grievance Meeting

Dear Mr. Littlefield,

Thank you for your reply. I am currently on an extended leave of absence that was necessitated by the hostile work environment I experienced at Amentum. I am in the local area and am available to meet in person at a neutral location or to participate by video or phone conference.

As I noted earlier, I already returned to work for more than thirty (30) days after my first leave, yet no Step 3 meeting was scheduled during that time. Requiring me to physically return to the same workplace before the grievance can proceed would place me back into the conditions that led to my leave of absence and would be inconsistent with both my health needs and my right to a safe work environment.

Please confirm whether District 75 will accommodate a meeting at a neutral site or via remote participation so that this matter can move forward.

Thank you,  
Debra Nelson  
[REDACTED]

[Get Outlook for Android](#)

From: Jamie Littlefield <jlittlefield@iam75.org>  
Sent: Thursday, October 16, 2025 9:00:46 AM

## EXHIBIT G

To: Debra Nelson <[REDACTED]>  
Cc: James Carnley <hs11oo@hotmail.com>  
Subject: Re: Clarification Request – Step 3 Grievance Meeting

Are you back to work? If so I will set it up as soon as possible.

Thank you,

Jamie R. Littlefield

ADBR

IAMAW District 75

[jlittlefield@iam75.org](mailto:jlittlefield@iam75.org)

334-400-6386

On Thu, Oct 16, 2025 at 7:24 AM Debra Nelson <[denelson62@outlook.com](mailto:denelson62@outlook.com)> wrote:  
Dear Mr. Littlefield,

I am following up regarding my Step 3 grievance meeting. I understand from prior communications that the Union believes I must return to work before this meeting can be scheduled.

As you are aware, I returned to work after my first medical leave and remained for more than thirty (30) days. During that period, no Step 3 meeting was ever scheduled. I am now on a second extended medical leave due to continued hostility and retaliatory conduct in the workplace.

I am willing to participate in the Step 3 meeting by video conference or at a neutral location to ensure my safety and to move the grievance process forward. Please confirm within seven (7) calendar days whether District 75 will accommodate this request or provide its position in writing.

I appreciate the assistance provided by our local steward, James Carnley, who has been supportive throughout this process. However, I have not received a response to my previous emails to your office dated August 6, 2025 and October 2, 2025.

Thank you for your time and attention.

Sincerely,  
Debra Nelson



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**CONFIDENTIALITY NOTICE:** The contents of this email message and any attachments are intended solely for the addressee(s) and may contain confidential and/or privileged information and may be legally protected from disclosure. Use or dissemination by anyone other than the intended recipient is strictly prohibited.



## EXHIBIT H

# JacksonLewis

Jackson Lewis P.C.  
15 South Main Street, Suite 700  
Greenville SC 29601  
(864) 232-7000 Direct  
(864) 235-1381 Fax  
[jacksonlewis.com](http://jacksonlewis.com)

VIA CERTIFIED MAIL, RETURN RECEIPT REQUESTED

October 31, 2025

Amentum Services, Inc.  
By and through its Registered Agent CT Corporation System  
2 Office Park Court, Suite 103  
Columbia, South Carolina 29223

Re: Debra Nelson vs. Curtiss Wright Electro Mechanical Corp. d/b/a Curtiss-Wright Steam  
and Air Solutions, Stephanie Lanier, and Shane Sablotsky  
U.S. District Court for the District of South Carolina, Charleston Division  
Civil Action No. 2:25-CV-00405-RMG-MGB  
Employment Records regarding Debra Nelson

Dear Sir or Madam:

Our firm represents Defendants Curtiss-Wright Steam and Air Solutions, Stephanie Lanier, and Shan Sablotsky in the above-referenced lawsuit. Enclosed is a subpoena requesting that your office send us a copy of any and all documents and materials relating to the employment of Plaintiff Debra Nelson ((DOB:11,1972; SSN: 249-29-XXX).). In lieu of your having to appear in person to produce the records, we will accept a mailed copy of your records by November 20, 2025.

Also enclosed is a Records Certificate of Authority that you or your designee will need to complete and sign. Please return the original signed certificate to us along with the records that it supports. This Certificate may be filed with the court; therefore, you should keep a copy for your files. We will accept and process an invoice for reasonable and customary copying and mailing charges.

If you have any questions, please do not hesitate to contact us. Thank you in advance for your assistance with this matter.

**EXHIBIT H**

Very Truly yours,

A handwritten signature in dark ink, appearing to read "T. Chase Samples". The signature is fluid and cursive, with the first name "T." being more prominent.

T. Chase Samples

Principal

864-672-8034 Direct

Jackson Lewis P.C.

TCS/SG



**EXHIBIT H**

AO 88B (Rev. 02/14) Subpoena to Produce Documents, Information, or Objects or to Permit Inspection of Premises in a Civil Action

**UNITED STATES DISTRICT COURT**

for the

District of South Carolina

Debra Nelson

*Plaintiff*Curtiss Weight Electro Mechanical Corp. d/b/a  
Curtiss-Wright Steam and Air Solutions et. al.*Defendant*

Civil Action No. 2:25-CV-00405-RMG-MGB

**SUBPOENA TO PRODUCE DOCUMENTS, INFORMATION, OR OBJECTS  
OR TO PERMIT INSPECTION OF PREMISES IN A CIVIL ACTION**

Amentum Services, Inc.

To:

*(Name of person to whom this subpoena is directed)*

☒ **Production:** **YOU ARE COMMANDED** to produce at the time, date, and place set forth below the following documents, electronically stored information, or objects, and to permit inspection, copying, testing, or sampling of the material:

See attached Exhibit A

Place:

Date and Time:

11/21/2025 at 10:00am

☐ **Inspection of Premises:** **YOU ARE COMMANDED** to permit entry onto the designated premises, land, or other property possessed or controlled by you at the time, date, and location set forth below, so that the requesting party may inspect, measure, survey, photograph, test, or sample the property or any designated object or operation on it.

Place:

Date and Time:

The following provisions of Fed. R. Civ. P. 45 are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and (g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date: \_\_\_\_\_

**CLERK OF COURT**

OR

/s/ T. Chase Samples

*Signature of Clerk or Deputy Clerk**Attorney's signature*

The name, address, e-mail address, and telephone number of the attorney representing *(name of party)* Curtiss-Wright Steam and Air Solutions et. al., who issues or requests this subpoena, are:

T. Chase Samples; 15 South Main Street, STE 700, Greenville, SC 29601; chase.samples@jacksonlewis.com;  
864-672-8034

**Notice to the person who issues or requests this subpoena**

If this subpoena commands the production of documents, electronically stored information, or tangible things or the inspection of premises before trial, a notice and a copy of the subpoena must be served on each party in this case before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).

## EXHIBIT H

AO 88B (Rev. 02/14) Subpoena to Produce Documents, Information, or Objects or to Permit Inspection of Premises in a Civil Action (Page 2)

Civil Action No. 2:25-CV-00405-RMG-MGB

### PROOF OF SERVICE

*(This section should not be filed with the court unless required by Fed. R. Civ. P. 45.)*

I received this subpoena for *(name of individual and title, if any)* \_\_\_\_\_

on *(date)* \_\_\_\_\_.

☐ I served the subpoena by delivering a copy to the named person as follows: \_\_\_\_\_

\_\_\_\_\_ on *(date)* \_\_\_\_\_; or

☐ I returned the subpoena unexecuted because: \_\_\_\_\_

Unless the subpoena was issued on behalf of the United States, or one of its officers or agents, I have also tendered to the witness the fees for one day's attendance, and the mileage allowed by law, in the amount of \$ \_\_\_\_\_.

My fees are \$ \_\_\_\_\_ for travel and \$ \_\_\_\_\_ for services, for a total of \$ 0.00.

I declare under penalty of perjury that this information is true.

Date: \_\_\_\_\_

\_\_\_\_\_  
*Server's signature*

\_\_\_\_\_  
*Printed name and title*

\_\_\_\_\_  
*Server's address*

Additional information regarding attempted service, etc.:

**EXHIBIT H**

AO 88B (Rev. 02/14) Subpoena to Produce Documents, Information, or Objects or to Permit Inspection of Premises in a Civil Action (Page 3)

**Federal Rule of Civil Procedure 45 (c), (d), (e), and (g) (Effective 12/1/13)****(c) Place of Compliance.**

(1) *For a Trial, Hearing, or Deposition.* A subpoena may command a person to attend a trial, hearing, or deposition only as follows:

- (A) within 100 miles of where the person resides, is employed, or regularly transacts business in person; or
- (B) within the state where the person resides, is employed, or regularly transacts business in person, if the person
  - (i) is a party or a party's officer; or
  - (ii) is commanded to attend a trial and would not incur substantial expense.

(2) *For Other Discovery.* A subpoena may command:

- (A) production of documents, electronically stored information, or tangible things at a place within 100 miles of where the person resides, is employed, or regularly transacts business in person; and
- (B) inspection of premises at the premises to be inspected.

**(d) Protecting a Person Subject to a Subpoena; Enforcement.**

(1) *Avoiding Undue Burden or Expense; Sanctions.* A party or attorney responsible for issuing and serving a subpoena must take reasonable steps to avoid imposing undue burden or expense on a person subject to the subpoena. The court for the district where compliance is required must enforce this duty and impose an appropriate sanction—which may include lost earnings and reasonable attorney's fees—on a party or attorney who fails to comply.

(2) *Command to Produce Materials or Permit Inspection.*

(A) *Appearance Not Required.* A person commanded to produce documents, electronically stored information, or tangible things, or to permit the inspection of premises, need not appear in person at the place of production or inspection unless also commanded to appear for a deposition, hearing, or trial.

(B) *Objections.* A person commanded to produce documents or tangible things or to permit inspection may serve on the party or attorney designated in the subpoena a written objection to inspecting, copying, testing, or sampling any or all of the materials or to inspecting the premises—or to producing electronically stored information in the form or forms requested. The objection must be served before the earlier of the time specified for compliance or 14 days after the subpoena is served. If an objection is made, the following rules apply:

- (i) At any time, on notice to the commanded person, the serving party may move the court for the district where compliance is required for an order compelling production or inspection.
- (ii) These acts may be required only as directed in the order, and the order must protect a person who is neither a party nor a party's officer from significant expense resulting from compliance.

(3) *Quashing or Modifying a Subpoena.*

(A) *When Required.* On timely motion, the court for the district where compliance is required must quash or modify a subpoena that:

- (i) fails to allow a reasonable time to comply;
- (ii) requires a person to comply beyond the geographical limits specified in Rule 45(c);
- (iii) requires disclosure of privileged or other protected matter, if no exception or waiver applies; or
- (iv) subjects a person to undue burden.

(B) *When Permitted.* To protect a person subject to or affected by a subpoena, the court for the district where compliance is required may, on motion, quash or modify the subpoena if it requires:

- (i) disclosing a trade secret or other confidential research, development, or commercial information; or

(ii) disclosing an unretained expert's opinion or information that does not describe specific occurrences in dispute and results from the expert's study that was not requested by a party.

(C) *Specifying Conditions as an Alternative.* In the circumstances described in Rule 45(d)(3)(B), the court may, instead of quashing or modifying a subpoena, order appearance or production under specified conditions if the serving party:

- (i) shows a substantial need for the testimony or material that cannot be otherwise met without undue hardship; and
- (ii) ensures that the subpoenaed person will be reasonably compensated.

**(e) Duties in Responding to a Subpoena.**

(1) *Producing Documents or Electronically Stored Information.* These procedures apply to producing documents or electronically stored information:

(A) *Documents.* A person responding to a subpoena to produce documents must produce them as they are kept in the ordinary course of business or must organize and label them to correspond to the categories in the demand.

(B) *Form for Producing Electronically Stored Information Not Specified.* If a subpoena does not specify a form for producing electronically stored information, the person responding must produce it in a form or forms in which it is ordinarily maintained or in a reasonably usable form or forms.

(C) *Electronically Stored Information Produced in Only One Form.* The person responding need not produce the same electronically stored information in more than one form.

(D) *Inaccessible Electronically Stored Information.* The person responding need not provide discovery of electronically stored information from sources that the person identifies as not reasonably accessible because of undue burden or cost. On motion to compel discovery or for a protective order, the person responding must show that the information is not reasonably accessible because of undue burden or cost. If that showing is made, the court may nonetheless order discovery from such sources if the requesting party shows good cause, considering the limitations of Rule 26(b)(2)(C). The court may specify conditions for the discovery.

(2) *Claiming Privilege or Protection.*

(A) *Information Withheld.* A person withholding subpoenaed information under a claim that it is privileged or subject to protection as trial-preparation material must:

- (i) expressly make the claim; and
- (ii) describe the nature of the withheld documents, communications, or tangible things in a manner that, without revealing information itself privileged or protected, will enable the parties to assess the claim.

(B) *Information Produced.* If information produced in response to a subpoena is subject to a claim of privilege or of protection as trial-preparation material, the person making the claim may notify any party that received the information of the claim and the basis for it. After being notified, a party must promptly return, sequester, or destroy the specified information and any copies it has; must not use or disclose the information until the claim is resolved; must take reasonable steps to retrieve the information if the party disclosed it before being notified; and may promptly present the information under seal to the court for the district where compliance is required for a determination of the claim. The person who produced the information must preserve the information until the claim is resolved.

(g) *Contempt.*

The court for the district where compliance is required—and also, after a motion is transferred, the issuing court—may hold in contempt a person who, having been served, fails without adequate excuse to obey the subpoena or an order related to it.

## EXHIBIT H

**Debra Nelson v. Curtiss-Wright Electro-Mechanical Corp, Stephanie Lanier, and Shane Sablotsky**  
**USDC -- District of South Carolina -- Civil Action No. 2-25-cv-00405-RMG-MGB**

## EXHIBIT A

You are hereby subpoenaed to provide copies of all the following documents for the period of time beginning November 1, 2023, and continuing until the date of your response:<sup>1</sup>

1. All records (including electronic records) related to the employment of **Debra Nelson** including, but not limited to:
  - a. Employment agreements;
  - b. Application for employment (including any online application);
  - c. Hiring records (including any resume, interview notes, offer letter, offer acceptance, correspondence related to hiring);
  - d. Job description for all positions held;
  - e. Performance evaluations;
  - f. Disciplinary or corrective actions;
  - g. Documents related to any leaves of absence;
  - h. Documents related to the termination of employment;
  - i. All other documents contained in any paper or electronic personnel file of Debra Nelson as kept in the ordinary course of business.
2. All records (including electronic records) related to the engagement of **Debra Nelson** in any capacity other than as an employee (e.g. independent contractor, consultant, etc.) including, but not limited to:
  - a. Independent contractor agreement;
  - b. Consulting agreement;
  - c. IRS Form W-9.
3. All records (including electronic records) related to compensation paid to **Debra Nelson**, including, but not limited to, payroll records, IRS W-2 forms, IRS 1099 forms, bonus payments, car allowance, and expense reimbursement forms or check.
4. All records (including electronic records) related to the employee benefits provided to **Debra Nelson** including, but not limited to, health insurance, dental insurance, vision insurance, long-term care insurance, cancer insurance, savings plans, life insurance, disability insurance, and retirement benefits (including any pension benefits, 401(k) plan, or other retirement benefit plan).

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<sup>1</sup> "Document" shall mean any written or graphic matter or other means of preserving thought or expression, and all tangible things from which information can be processed or transcribed, including, but not limited to correspondence, memoranda, notes, messages, letters, telegrams, teletype messages, bulletins, diaries, chronological data, minutes, books, reports, charts, ledgers, invoices, worksheets, receipts, computer printouts, schedules, affidavits, contracts, transcripts, surveys, graphic representations of any kind, photographs, graphs, e-mails, microfilm, videotapes, tape recordings, motion pictures or other films.

## **EXHIBIT H**

**\*You may comply with this subpoena by supplying the requested records by mail or facsimile prior to the date of inspection listed on the subpoena to:**

**Jackson Lewis P.C.  
15 South Main Street, Suite 700  
Greenville, SC 29601  
Fax: (864) 235-1381  
Chase.Samples@jacksonlewis.com**

## EXHIBIT H

IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION

|                                                                                                                                                                                                      |                                 |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------|
| Debra Nelson,<br><br>Plaintiff,<br><br>v.<br><br>Curtiss Wright Electro Mechanical Corp.<br>d/b/a Curtiss-Wright Steam and Air Solutions,<br>Stephanie Lanier, and Shane Sablotsky<br><br>Defendants | C.A. No.: 2:25-CV-00405-RMG-MGB |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------|

**CERTIFICATE OF AUTHORITY**

I, \_\_\_\_\_ hereby certify that I am in the \_\_\_\_\_ (Title)  
of \_\_\_\_\_, located at \_\_\_\_\_ (Street Address)  
\_\_\_\_\_ (city and state) \_\_\_\_\_ and have personal  
knowledge of such records; that the enclosed documents are a true and complete copy of  
documents in my custody, or control regarding the documents requested in the subpoena issued by  
Jackson Lewis P.C.; that the enclosed documents are kept in the course of a regularly conducted  
business activity; and that it is the regular practice of \_\_\_\_\_ create such  
records as the enclosed documents.

I declare under penalty of perjury under the laws of the United States of America that the  
foregoing is true and correct. Executed on this \_\_\_\_ day of \_\_\_\_\_, 2025.

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Printed Name

EXHIBIT I

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.  
d/b/a Curtiss-Wright Steam and Air  
Solutions, STEPHANIE LANIER, and  
SHANE SABLITSKY,

Defendants

C.A. No. 2:25-cv-00405-DCN-MHC

**DEFENDANTS' NOTICE OF  
DEPOSITION OF PLAINTIFF DEBRA NELSON**

**TO: DEBRA NELSON, PLAINTIFF, *PRO SE***

Pursuant to Rule 30 of the Federal Rules of Civil Procedure, Defendants, Curtiss Wright Electro Mechanical Corp. d/b/a Curtiss-Wright Steam and Air Solutions, Stephanie Lanier, and Shane Sablitsky ("Defendants"), hereby serve their notice of intent to take the oral deposition of Plaintiff Debra Nelson, pursuant to Rule 30 of the *Federal Rules of Civil Procedure*. **The deposition will be held at Veritext Legal Solutions at 28 Bridgeside Boulevard, Suite 205, Mount Pleasant, South Carolina 29464, beginning at 10:00 a.m. EST on October 28, 2025.** The deposition will continue from day to day until completed before a Notary Public or an officer authorized to administer oaths by the laws of the State of South Carolina. This deposition is being taken for the purposes of discovery, for use at trials, and for such other purposes authorized or permitted by the *Federal Rules of Civil Procedure*.

Plaintiff is directed to produce at the commencement of her deposition all documents she reviewed in preparation for the deposition. In the course of the deposition, Plaintiff may be



EXHIBIT I

questioned in regard to documents produced in discovery by both Plaintiff and Defendant, including, but not limited to, documents produced by Defendant, which have been Bates-numbered DEFS 0001-DEFS 0132.

Respectfully submitted this 2<sup>nd</sup> day of October 2025.

s/T. Chase Samples

T. Chase Samples (Fed. I.D. No. 10824)

Joseph V. Valenza (Fed. I.D. No. 14416)

Email: Chase.Samples@jacksonlewis.com

Email: Joseph.Valenza@jacksonlewis.com

**JACKSON LEWIS P.C.**

15 South Main Street, Suite 700

Greenville, SC 29601

Phone: 864-232-7000

***ATTORNEYS FOR DEFENDANTS***

EXHIBIT I

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.  
d/b/a Curtiss-Wright Steam and Air  
Solutions, STEPHANIE LANIER, and  
SHANE SABLITSKY,

Defendants

C.A. No. 2:25-cv-00405-DCN-MHC

**CERTIFICATE OF SERVICE**

The undersigned certifies that on October 2, 2025, a copy of the foregoing **DEFENDANTS' NOTICE OF DEPOSITION OF PLAINTIFF DEBRA NELSON**, has been served upon the following *pro se* Plaintiff via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

s/ T. Chase Samples

T. Chase Samples